

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

15. LEE SARRAIN V. GINA SARTAIN

25FL0329

Petitioner filed a Request for Order (RFO) on May 6, 2026, seeking an order compelling Respondent's disclosures and to set trial dates. Proof of Service shows Respondent was only served with the FL-300 and a Blank FL-320 on May 12, 2026.

Respondent has not filed a Responsive Declaration.

The court drops the matter from calendar due to the lack of proper service.

Petitioner filed a second RFO on June 9, 2026, seeking bifurcation of marital status. Respondent was served by mail on June 11, 2026.

Respondent has not filed a Responsive Declaration. The court deems the failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

California Rules of Court, rule 5.390(a) states that on noticed motion of a party, using form FL-300, "Request for Order," "the stipulation of the parties, case management, or the court's own motion, the court may bifurcate one or more issues to be tried separately before other issues are tried."

Family Code section 2337 provides that "[i]n a proceeding for dissolution of marriage, the court, upon noticed motion, may sever and grant an early and separate trial on the issue of the dissolution of the status of the marriage apart from other issues." Fam. Code, § 2337, subd. (a). The trial court may separately try the issue of termination of marriage if doing so "is likely to simplify the determination of the other issues." Cal. Rules of Court, rule 5.390(b)(7).

Public policy favors bifurcation of trial on pivotal issues in a dissolution action. In re Marriage of Macfarlane & Lang, 8 Cal.App.4th 247, 257(1992); see In re Marriage of Wolfe, 173 Cal.App.3d 889, 893–894 (1985) ["To the extent bifurcation of issues such as custody, support or the division of community property can assist the parties to achieve settlement of remaining issues, it should be encouraged"]. For the issue of marital status, "[c]onsistent with the legislative policy favoring no fault dissolution of marriage, only slight evidence is necessary to obtain bifurcation and resolution of marital status. On the other hand, a spouse opposing bifurcation must present compelling reasons for denial." Gionis v. Superior Court, 202 Cal.App.3d 786, 790 (1988).

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The minimum statutory requirements for bifurcating and terminating marital status are that six months must have passed since the date of service of the summons and petition (§ 2339, subd. (a)), and that the party seeking termination of marital status must have served a preliminary declaration of disclosure or obtained a written agreement to defer service to a later date (§ 2337, subd. (b)). Both requirements were met here.

Parties are ordered to appear for the bifurcation.

TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR THE BIFURCATION.

THE COURT DROPS THE MAY 6, 2026 RFO FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.